SHUMILAYI MOYO

AND

LANGTON GONDO

AND

CLEAMANTINE GONDO

AND

DANIEL MASHANDA

Versus

DAVID JUNIOR ISHEUNESU MOYO

AND

MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 6 AND 22 JULY 2026

Civil trial

D. Abraham, for the plaintiffs
G. Sibanda, for the 1st defendant
No appearance for the 2nd defendant

KABASA J: On 20 July 2022 the plaintiffs issued summons against the 1st and 2nd defendants in which was sought the following relief: -

"1. An order for the last Will and Testament executed by the late Luka Gondo on the 4th day of October 2016 be and is hereby declared invalid, that is null and void.

2. An order declaring that the Letters of Administration issued by the 2nd defendant on the 18th of February 2022, of which 1st defendant was appointed Executor Testamentary in respect of Executor of Estate late Luka Gondo (sic) are declared null and void.

3. An order declaring the appointment of the late Sithembile Moyo and subsequently the 1st defendant as Executor Testamentary in respect of Executor of Estate late Luka Gondo as null and void (sic)

4. The 2nd defendant is directed to set in motion the process for the appointment of an Executor to administer the Estate of the late Luka Gondo.

5. Costs of suit.

Alternatively

6. An order declaring the plaintiffs are beneficiaries (sic) of Estate Late Luka Gondo."

The claim, as elaborated in the declaration is anchored on the allegations that the deceased suffered from illnesses due to complications caused by his HIV + status. Sithembile Moyo, one of the deceased's daughters, took him from his home to her home on the pretext that she wanted to look after him. She thereafter stopped everyone's access to the late Luka Gondo who was in a catatonic state exhibiting limited cognitive function. Upon his death in September 2020 a Will surfaced which disinherited everyone else except Sithembile. The 1st plaintiff as the deceased's wife contributed in building and establishing the matrimonial home which was bequeathed to Sithembile and the 2nd - 4th plaintiffs enjoyed a good relationship with their father and he would therefore not have excluded them in his Will. The Will is therefore not a true reflection of the late Luka Gondo's wishes as he lacked the requisite capacity to attest to a Will. Sithembile orchestrated the execution of the Will.

In contesting the claim, the 1st defendant refuted the allegations that the late Luka Gondo lacked the mental capacity to attest to a Will and that his mother, to whom the immovable property in question was bequeathed, unduly influenced the late Luka Gondo.

Two issues had been referred to trial but before the hearing, the parties agreed that the two issues unnecessarily split one issue and so the only issue was:-

"Whether or not the late Luka Gondo was of sound mind when he attested to the last Will and testament on 4 October 2016."

Evidence was led from the 1st, 3rd and 4th plaintiffs as well as from a granddaughter of the late Luka Gondo.

In essence all the witnesses' testimony centred on the good relationship Luka had with his children and grandchildren and that he had expressed his wish that his house be for the benefit of all his grandchildren. Luka had health issues and was taking medication for diabetes, hypertension and was on anti-retroviral treatment. In 2016 he was admitted at Bulawayo Central Hospital due to a knee problem. That knee problem caused him to use a walking stick

to aid with mobility. He was born in 1932 and was therefore 84 years old at the time he attested to the Will.

Sithembile took Luka to her house in 2020 and was staying with him until his death in September 2020. In 2016 Luka was not staying with Sithembile.

The totality of these witnesses' evidence showed that Luka had health issues but was not in a catatonic state.

The 1st plaintiff who was described as Luka's surviving spouse only stayed with Luka from 1984-1990, a period of 6 years. She had left him for a period of 26 years as at 2016 when the Will was attested to and 30 years as at the year of Luka's death. Her evidence was at variance with what was sought to be portrayed in the declaration, including the assertion that she had assisted in building and establishing the 'matrimonial' home which was the only asset Luka had and which was bequeathed to his daughter, Sithembile.

The fourth plaintiff, who is Luka's son was not staying with Luka and only met him at funerals and family gatherings. Would a person in a comatose state be seen at such events? This witness could not speak to Luka's mental capacity as he had no personal knowledge of that.

The third plaintiff, who is Luka's daughter has been residing in South Africa since 2004 and hardly came home due to work commitments. Apart from being told of her father's health issues, she had no personal knowledge of what effect these health issues had on his mental capacity. She only surmises that Luka could not have left the house to Sithembile because he loved all his children and grandchildren and wanted the house to benefit everyone. She expressed the fear that the potential beneficiaries who are likely to come home from South Africa due to the unrest threat would not have a place to stay if the house is given to Sithembile. In 2015 she visited Zimbabwe and Luka expressed his wish that the house be for the benefit of all the children and grandchildren.

This begs the question that if in 2015 Luka was mentally alert and supposedly expressed those wishes, did diabetes and hypertension make him comatose barely a year later when he attested to the Will which is now being contested?

On the whole none of these witnesses are medical doctors. There was no medical evidence to support the assertion that the late Luka was in a catatonic state as at the time he attested to the Will.

The long and short of it is that there was no evidence to establish that Sithembile prevailed over Luka and the Will was a product of undue influence. The Will was attested to in 2016 and Sithembile only took Luka to her home in 2020, 4 years later. The assertions in the declaration are therefore not correct, assertions which sought to portray that Sithembile took Luka to her home the very year he died and barely months before such death.

The 1st defendant, through whom the Will was produced replaced his mother, Sithembile as executor of Luka's estate after Sithembile fell ill and did a renunciation and substitution process, which made 1st defendant the Executor of Luka's estate. The Will was never contested when it was accepted by the 2nd defendant.

The witness was aware of his grandfather's HIV status and from February 2020 up to his death in September 2020 Luka was staying with his (witness's) mother Sithembile. Luka was mentally stable and the witness was not aware of any coercion by his mother over Luka which led to the execution of the Will. He was not present when the Will was executed.

With this evidence, the question is whether the plaintiffs have made a case for the relief they seek.

I am indebted to both counsel who referred the court to the relevant legal provisions and case authorities which are relevant in resolving the issue at hand.

Section 4 of the Wills Act [Chapter 6:06] provides that:-

> "(1) Subject to this Act, every person who is of or over the age of sixteen years may make a Will unless at the time of making the Will he is mentally incapable of appreciating the nature and effect of his act."

Subsection (4) thereof provides that:-

> "(4) The burden of proving that -
>
> (a) At the time of making a Will, the testator was mentally incapable of appreciating the nature and effect of his act: …
> shall rest on the person alleging it."

In *Matanga* v *Denhure and Anor* HH 87-2008, a matter where the validity of a Will was being challenged on the basis of the testator's mental incapacity, the court held that the

applicant had failed to prove mental incapacity. The necessity of medical testimony was emphasized with the court referring, with approval, to the decision in *Ngwenya* v *Ngwenya & Ors* 2001(1) ZLR 117.

As in the *Matanga* case (supra) Luka was hospitalised for a knee problem and a knee problem cannot possibly affect one's mental capacity. Counsel for the plaintiffs mentioned that Luka was confirmed to use of a wheelchair due to his failing health but there was no such evidence adduced from the witnesses. It is not clear where counsel obtained that information which only appears in the closing submissions. The evidence by the first witness was to the effect that due to that knee problem Luka used a walking stick. The use of a walking stick due to a knee problem does not amount to a "catatonic" state.

In *Chitsamatunga and Ors* v *Chitsamatunga & Ors* HH 32-11 the testator's Will was also challenged on the basis that the testator at 86 years, was senile, visually impaired and incapable of appreciating the nature of his actions. The court found that there was no evidence to prove such assertions, including the allegations of undue influence.

I would say the same *in casu*. Even accepting that Luka was diabetic, hypertensive and on anti-retroviral treatment, this, without more would not lead to the conclusion that he was mentally incapacitated. No evidence of such mental incapacity was adduced. One cannot say because someone is on medication for diabetes, hypertension and anti-retroviral drugs, it follows that they suffer from mental instability.

In *Tavengwa* v *Tavengwa & Ors* 2005 (1) ZLR 33 (H) NDOU J, in declaring the testator's Will invalid, had the benefit of medical evidence from the doctor who described the testator as semi-comatose and was discharged from hospital because the doctors had done all they could and had nothing more to offer. I must make the point that this was in 2001 compared to the present matter when anti-retroviral therapy was now readily available and affordable. A specialist doctor, unlike *in casu,* also testified in the *Tavengwa* case.

In casu it appears it was some deductive logic that medication for diabetes, hypertension and HIV must affect the person's mental faculties. It is also important to note that in *Tavengwa*'s case the Will was executed on 22/7/2001 and the testator died on 27/7/2001 making it very unlikely that he was in a position to execute a Will.

Luka's infirmity or weakness was not evident from the evidence led for one to conclude that he was mentally incapable of appreciating the nature and import of what he was doing.

It is important to note this exchange between the first witness who is said to have been Luka's care-giver and counsel for the 1st defendant:-

"Q. You said Luka Gondo's ailment was knee problem.

A. Yes

Q. Does a knee problem affect a person mentally.

A. Yes it can affect as he was on his medication."

This response speaks volumes and I say so because if Luka was in a comatose/catatonic state, this witness would have said so and not simply say because he was on medication he was affected mentally.

I found it interesting that this same witness recalled that in 2016 when the Will was executed Sithembile took Luka from his home under the pretext that she was taking him to hospital. This witness was not there when the Will was executed and was not even aware of its existence and only became aware of it on the day the parties held a round table conference. Why then would she recall what happened in 2016, on a date she cannot state with certainty was the date the Will was executed? I must say this only shows a desperate attempt to cast aspersions on Sithembile and have the Will invalidated so that all the deceased's grandchildren benefit from the house Luka bequeathed to his daughter, Sithembile.

The Will was accepted by the Master and no challenge was made during Sithembile life time. Sithembile died after acceptance of the Will and the first plaintiff became aware of such Will in 2020. One wonders why the Will was not challenged before Sithembile death. The explanations given by the fourth plaintiff and first plaintiff as to why there was no such challenge do not make much sense. The first witness could only say Sithembile was challenged and they tried to discuss the matter whilst the fourth witness said they raised concerns and were asked to pay $50. These explanations make no sense and do not show why such challenge was not made at the time when it could have been made.

A potential beneficiary's expectations borne out of a sense of entitlement cannot invalidate a Will properly executed and compliant with all the requirements as provided for in s8 of the Wills Act.

No evidence of undue influence was presented. As already alluded to, Sithembile only took Luka to her home in February 2020, 4 years after the execution of the Will. There is therefore no evidence proving undue influence.

In *Rogers* v *Rogers & Anor* 564-07 the court stressed that undue influence must be supported by specific facts showing coercion operative at the time of execution. There was a paucity of evidence on this allegation. It was a bald but unsubstantiated allegation.

Freedom of testation must not be unduly fettered by challenges from potential beneficiaries who seek to invalidate a Will. A Will is the testator's voice wherein such a testator expresses his wishes regarding how his/her property is to be distributed upon his/her death.

In *Chigwada* v *Chigwada & Ors* S 188-20 the court emphasized that a testator is free to bequeath his property to whomsoever he pleases.

Section 5(2) of the Wills Act provides that:-

> "(2) Subject to this Act and any other enactment, a Will shall not be invalid solely because the testator has disinherited or omitted to mention any parent, child, descendant or other relative or because he has not assigned any reason for such disinheritance or omission."

Courts must therefore be wary of ignoring a testator's wishes by acceding to unsubstantiated claims of mental incapacity.

I do not lose sight of the allegations that Sithembile took the late Luka's medical records. As stated earlier, this suggestion is meant to show that Sithembile was cunning and so did not want Luka's medical records to be accessed by those who would want to challenge his Will. However sight must not be lost of the fact that the Will was executed in 2016 well before Sithembile took Luka to her home. The complexion of this case would have changed had it been shown that the Will was executed between February and September 2020 which is the period Luka was under Sithembile care. If that had been so, it would have raised issues as to why the Will was executed months before Luka's death and why Sithembile saw it fit to take him to her home a few months before his death.

This was a case which required the plaintiffs to prove their case and this they failed to.

There was therefore no evidence to prove, on a balance of probabilities, that Luka was mentally incapacitated to execute a Will. There was equally no evidence of undue influence brought to bear on him by the one to whom he bequeathed the house, which house the plaintiffs believe ought to have been left for the benefit of all Luka's children and grandchildren.

> "Wills silence family disputes relating to the inheritance of the deceased's estate. They embody the actual wishes of the deceased concerning the disposition of his or her property. They should not be lightly interfered with." (*Chigwada* v *Chigwada & 2 Ors* (supra)

CHIWESHE J (as he then was) had this to say in a matter where a Will was challenged on more or less the same grounds:-

> "On the face of it the Will meets the criteria outlined in the Wills Act [Chapter 6:06]. The plaintiff has not seriously challenged the authenticity of the deceased's signature nor has the plaintiff sought to admit any evidence from Coghlan and Welsh shedding light on the circumstances under which the Will was made. It is unlikely that a reputable firm of lawyers could take instructions to draw up a Will from a person of dubious mental capacity."

Luka's Will was drawn up by a firm of lawyers. I am not persuaded by counsel for the plaintiffs' argument that the 1st defendant ought to have led evidence from the lawyers. The first defendant would have had no reason to because he had no onus to prove Luka's mental capacity. Those who challenge such mental capacity ought to have proved such lack.

With that said, the plaintiffs failed to prove that Luka's Will is invalid by virtue of the testator's mental incapacity and/or duress. The Will was properly accepted by the 2nd defendant and the estate of the late Luka ought to be administered in terms of his wishes as expressed in the Will he executed on 4 October 2016.

In the result, I make the following order:-

1. The plaintiffs' claim be and is hereby dismissed with costs.

Tanaka Law Chambers, plaintiff's legal practitioners
Abel Law Chambers, 1st defendant's legal practitioners